

Calendar Line 6

Case Name: *Rafael Herrera v. FCA US LLC*

Case No.: 25CV469397

Plaintiff seeks an order imposing monetary and evidentiary sanctions on Defendant pursuant to Code of Civil Procedure Section 871.26, subdivision (j).

Parties may conduct initial depositions within 120 days after the filing of the answer. (§ 871.26, subd. (c).) This includes “the person who is most qualified to testify on the defendant’s behalf” where it is not a natural person. (§ 871.26, subd. (c)(2).) Unless the noncomplying party shows good cause, the court shall impose a “two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney . . . for failure to comply with . . . subdivision (c),” paid within 15 business days. (§ 871.26, subd. (j)(2).)

Defendant does not dispute it missed the deadline imposed by Section 871.26. (McKay Decl. ¶¶ 3-5.) Instead, it argues that it had good cause due to “an administrative error.” (McKay Decl. ¶ 5.) The Court is not convinced this is good cause. Indeed, allowing the broad and arguably vague term “administrative error,” by itself, to establish good cause runs the risk of completely nullifying the statutory obligation. And Defendant provides no persuasive authority that the discovery scheme enumerated in section 871.26 requires a showing of bad faith or prejudice or is subject an exception for “substantial justification.”

Plaintiff’s motion for monetary sanctions in the amount of \$2,500 is GRANTED, to be paid by Defendant’s counsel within 15 business days.

Plaintiff also seeks evidentiary sanctions. For a “defendant’s repeated noncompliance with subdivision (b), (c), or (d), a court shall order that evidentiary sanctions attach” precluding the defendant from introducing certain evidence at trial. (§ 871.26, subd. (j)(4).) Plaintiff argues that Defendant’s counsel’s noncompliance in other actions constitutes repeated violations, referring to six cases where Defendant, represented by the same counsel, allegedly failed to comply with Section 871.26. The court disagrees. While counsel’s frequent noncompliance with Section 871.26, if true, would be concerning, the Court has found no authority authorizing evidentiary sanctions for violations in other cases, and Plaintiff has cited none. Accordingly, Plaintiff’s motion for evidentiary sanctions is DENIED.

Plaintiff shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 7

Case Name: *Jun Lu v. Rozita Dadgostari*

Case No.: 25CV471942

Before the Court is Defendant Rozita Dadgostari's ("Defendant" or "Dadgostari") demurrer to the first, second, third, and fourth causes of action alleged in the complaint filed by Plaintiff Jun Lu a/k/a June Lu ("Plaintiff" or "Lu").²

According to the allegations of the complaint, Dadgostari failed to make full payment to purchase Lu's 30% membership interest in Stanford Education Foundation, LLC ("SEF") for \$500,000. (Complaint, ¶ 1.) Lu is a co-founder of SEF and holds a 30% membership interest in SEF. (*Id.* at ¶ 8.) In June 2023, Dadgostari approached Lu about buying Lu's 30% membership interest in SEF. (*Id.* at ¶ 9.) In late 2023, Dadgostari entered into a purchase agreement with Lu (the "Purchase Agreement"). (*Id.* at ¶ 10.) One condition for closing, set forth in section 2.4(a) of the Purchase Agreement, required Dadgostari to pay Lu \$500,000 by wire transfer. (*Id.* at ¶ 12.) Around January 1, 2024, Dadgostari issued two checks to Lu, one for \$342,382 and another for \$100,000. (*Id.* at ¶ 15.) Upon receiving the two checks, Lu questioned Dadgostari as to why the payment was incomplete. (*Ibid.*) Dadgostari stated that she did not pay the remaining balance due to concerns regarding a small business administration loan associated with the business. (*Id.* at ¶ 16.) Dadgostari falsely represented to Lu that Dadgostari intended to obtain a loan and would provide the remaining balance. (*Id.* at ¶ 17.) Ultimately, Dadgostari paid a total of \$442,382. (*Id.* at ¶ 20.) In mid to late January 2024, Lu followed up with Dadgostari regarding the remaining \$57,618 that Dadgostari owed under the Purchase Agreement. (*Id.* at ¶ 21.) Dadgostari again promised Lu that Dadgostari planned to pay the full purchase price. (*Ibid.*) When Dadgostari did not pay, Lu told Dadgostari that Lu was terminating the Purchase Agreement and on June 24, 2024 Lu sent Dadgostari a written notice terminating the Purchase Agreement pursuant to section 5.1(b) of the Purchase Agreement. (*Id.* at ¶¶ 26-27.)

Lu filed the complaint on July 29, 2025, alleging the following causes of action: (1) fraud; (2) conversion; (3) breach of contract; (4) unjust enrichment; and (5) receiving stolen property.

The Court GRANTS judicial notice of Exhibits A through C to Dadgostari's request for judicial notice under Evidence Code section 452, subdivision (d). (Dadgostari's Request for Judicial Notice ("RJN"), Exs. A-C; Evid. Code, ¶ 452, subd. (d).) The Court takes judicial notice of the existence of these exhibits but does not take notice of the truth of any disputed contents of these exhibits. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 80-81 (*Oh*) [truth of contents of court records cannot be judicially noticed].)³

² Dadgostari also initially demurred to Lu's complaint on the grounds of another action pending, but Dadgostari filed an amended demurrer on March 18, 2026 withdrawing this argument.

³ The court notes that Dadgostari appears to have withdrawn her request for judicial notice as part of filing an amended demurrer on March 18, 2026. To the extent Dadgostari did not intend to withdraw this request, the court grants judicial notice, as discussed.